

The Dentists (Code of Ethics) Regulations, 1976

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Union of India - Act

The Dentists (Code of Ethics) Regulations, 1976

UNION OF INDIA

India

The Dentists (Code of Ethics) Regulations, 1976

Rule THE-DENTISTS-CODE-OF-ETHICS-REGULATIONS-1976 of 1976

Published on 2 August 1976

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The Dentists (Code of Ethics) Regulations, 1976

Published vide Notification G.S.R. 1225 dated 2nd August, 1976

G.S.R. 1225 dated 2nd August, 1976. - In exercise of the powers conferred by Section 17A of the Dentists Act, 1948 (16 of 1948

), the Dental Council of India hereby makes the following regulations for laying down standards of professional conduct and etiquette or the code of ethics for dentists, namely : -

1.

Short title and commencement.

(1)

These regulations may be called the Dentists (Code of Ethics) Regulations, 1976.

(2)

They shall come into force on the date of their publication in the official Gazette.

2.

Definitions.

- In these regulations unless the context otherwise requires, -

(a)

'Act' means the Dentists Act, 1948 (

16 of 1948

);

(b)

'Council' means the Dental Council of India ;

(c)

All expressions used and not defined in these regulations shall have the meanings assigned to them in the Act.

3.

Declaration.

- Every dentist who has been registered (either on Part A or Part B of the State Dentists Register) shall, within a period of thirty days from the date of commencement of these regulations, and every dentist who gets himself registered after the commencement of these regulations shall, within a period of thirty days from such registration, make, before the Registrar of the State Dental Council a declaration in the form set out for the purpose in the Schedule to these regulations and shall agree to abide by the same.

4.

Duties and obligation of dentists towards patients and public.

- Every dentist shall -

(a)

be mindful of the high character of his omission and the responsibilities he holds in the discharge of his professional duties and shall always remember that care of the patient and treatment of the disease depends upon the skill and prompt attention shown by him and always remember that his personal reputation, professional ability and fidelity remain his best recommendations ;

(b)

treat the welfare of the patient as paramount to all other considerations and shall conserve it to the utmost of his ability ;

(c)

be courteous, sympathetic, friendly and helpful and to, and always ready to respond to, the call of his patients, and that under all conditions his behaviour towards his patients and the public shall be polite and dignified ;

(d)

observe punctuality in fulfilling his appointment ;

(e)

deem it a point of honour to adhere with as much uniformity as the varying circumstances may admit, to the remuneration for professional services ;

(f)

not permit consideration of religion, race, caste and creed, party politics or social standing to intervene in his duties towards his patient ;

(g)

keep all the information of a personal nature which he comes to know about a patient directly or indirectly in the course of professional practice in utmost confidence ; and be mindful that the auxiliary staff viz., dental hygienists and dental mechanics and other staff employed by him also observe this rule for the reason that knowledge or information of a patient gained during the course of examination and treatment is privileged, and a dentist is not bound to disclose professional secrets, except with the consent of the patient , or on being ordered to do so by a court or law.

5.

Duties of one dentist towards another.

- Every dentist shall -

(i)

cherish a proper pride in his colleagues and shall not disparage them either by actions, deeds or words ;

(ii)

on no account contemplate or do anything harmful to the interest of the members of the fraternity ;

(iii)

honour mutual arrangements made regarding remuneration etc., when one dentist is entrusted with the care of a patient of another dentist during the latter's sickness or absence ;

(iv)

retire in favour of the regular dentist after the emergency is over when a dentist is called upon in any emergency to treat the patient of another dentist.

Note. - He shall be entitled to charge the patient for his services ;

(v)

institute correct treatment at once, with the least comment, and in a manner that will avoid any reflection on such other dentist if a dentist is consulted by a patient of another dentist, and if the latter finds indisputable evidence that such a patient is suffering from previous faulty treatment ;

(vi)

regard it as a pleasure and privilege to render gratuitous service to another dentist, his wife and family members, although there is no legal bar to a dentist from charging another dentist for professional service.

6.

Unethical practices.

- The following shall be the unethical practices for a dentist, namely : -

(a)

employment by a dentist in his professional practice of any professional assistant (not being a registered dental hygienist or a registered dental mechanic) whose name is not registered in the State Dentists Register, to practice dentistry as defined in Clause (d) of Section 2 of the Act ;

(b)

styling by any dentist or a group of dentists his/their 'Dental clinic or Chamber/s by the name of 'Dental Hospitals ;

(c)

any contravention of the Drugs and Cosmetics Act, 1940 (23 of 1940

) and the rules made thereunder as amended from time to time, involving an abuse of privileges conferred thereunder upon a dentist, whether such contravention has been the subject of criminal proceedings or not ;

(d)

signing under his name and authority and certificate which is untrue, misleading or improper, or giving false certificates or testimonials directly or indirectly concerning the supposed virtues of secret therapeutic agents or medicines ;

(e)

immorality involving abuse of professional relationship ;

(f)

conniving at or aiding in any kind of illegal practice ;

(g)

promise of radical cure by the employment of secret method of treatment ;

(h)

advertising whether directly or indirectly, for the purpose of obtaining patients or promoting his own professional advantage ;

(i)

acquiescing in the publication of notice commencing or directing attention to the practitioner's skill, knowledge, service or qualifications or of being associate with or employed by those who procure or sanction such advertising or publication through press reports ;

(j)

employing any agent or canvasser for the purpose of obtaining patients ; or being associated with or employed by those who procure or sanction such employment ;

(k)

using or exhibition of any sign, other than a sign which in its character, position, size and wording is merely such as may

reasonably be required to indicate to persons seeking them the exact location or, and entrance to, the premises at which the dental practice is carried on ;

(l)

using of sign-boards larger than 0.9 metre by 0.6 metre and the use of such words as 'Teeth', 'Painless Extraction' or the like, or notices in regard to practices on premises other than those in which a practice is actually carried on, or show-cases, or licensing light signs, and the use of any sign showing any matter other than his name and qualifications as defined under Clause (j) of Section 2 of the Act ;

(m)

affixing a sign-board on a Chemist's shop or in places where the dentist does not reside or work ;

(n)

insertion of any paragraphs and notice in the press and also the announcement of names in the trading list and the display of their names or announcements at places of public entertainments; other than the change of his address ;

(o)

allowing the dentist's name to be used to designate commercial articles such as tooth paste, tooth brush, tooth powder, liquid cleaners, or the like or on circulars for such items, or permitting publication of his opinion on any such items, in the general or lay papers or lay journals.

(p)

mentioning after dentist's name any other abbreviation except those indicating dental qualifications as earned by him during his academic career in dentistry and which confirm to the definition of recognised dental qualification as defined in Clause (j) of Section 2 of the Act, or any other recognised academic qualifications ;

(q)

using of abbreviations like (i) R.D.P. for registered Dental Practitioner, (ii) M.I.D.A. for member Indian Dental Association , (iii) F.I.C.D. for Fellow of International College of Dentists, (iv) M.I.C.D. for Master of International College of Dentists (v), F.A.C.D. for Fellow of American College of Dentists, (vi) M.R.S.H. for member of Royal Society of Hygiene, etc., and the like, which are not academic qualifications.

7.

Change of address and announcements relating thereto.

- (l) A notice for the change of address shall be intimated to the concerned State Dental Council.

(2)

A dentist may issue a formal announcement in the Press, one insertion per paper, regarding the following, (namely) : -

(a)

on starting practice ;

(b)

on change of type of practice ;

(c)

on changing address ;

(d)

on temporary absence from duty ;

(e)

on resumption to practice ;

(f)

on succeeding to another practice.

8.

Action for unethical conduct.

(1)

When complaint or information is received by the State Dental Council that any dentist is resorting to any unethical practice as mentioned in regulation 6, or is committing a breach of any other of these regulations, the concerned State Dental Council may call upon him to explain and after giving him a reasonable opportunity of being heard and after making such enquiries, if any, as it may deem fit, decide whether such a practice tantamount to infamous conduct in any professional respect or contravenes any of the provisions of any other of these regulations, and then determine the action to be taken against the dentist under Section 41 of the Act.

(2)

As and when complaint of breach of these regulations is brought to the notice of the Registrar of a State Dental Council, he shall take prompt action.

Schedule

Form of declaration

(See Regulation 3)

(i)

I solemnly pledge myself to devote my life to the cause of serving humanity in the field of dental care ;

(ii)

I shall not use my dental knowledge contrary to the laws of humanity ;

(iii)

I shall not permit consideration of religion, nationality, race, caste and creed, party politics or social standing to intervene in my duty towards my patient and the profession ;

(iv)

I shall look after the dental health of my patient as my first consideration ;

(v)

I shall honour the secrets which are confided in me by my patients during the professional services ;

(vi)

I shall always maintain the honour and noble traditions of the dental profession ;

(vii)

I shall deem it an honour to cherish a proper pride in my colleagues and shall not disparage them by my actions, deeds or words ;

(viii)

I shall abide by the various provisions of the Act and desist from using a degree/diploma or an abbreviation indicating or implying a qualification, which is not in accordance with the definition of 'recognised dental qualification' as defined under Clause 0) of Section 2 of the Act ;

(ix)

I shall not indulge in any activity which might bring discredit to the dental profession.

Signature

Name of Dentist.....

Registration No.....

State

Dated the.....

Place.....

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